

IN RE APPLICATION
FOR AN ORDER PURSUANT TO
18 U.S.C. § 2703(d)

APPLICATION FOR AN ORDER
PURSUANT TO 18 U.S.C. § 2703(d)

RECORDS SOUGHT

[RECORDS SOUGHT – example follows]

1. The subscriber's account or login name;
2. The subscriber's address;
3. The subscriber's telephone number or numbers;
4. The subscriber's e-mail address;

5. Any other information pertaining to the identity of the subscriber, including, but not limited to billing information (including type and number of credit cards, student identification number, or other identifying information).

[IF APPLICABLE:

B. User connection logs for:

(1) all accounts identified in Part A, above,

(2) the IP address _____, for the time period beginning _____ through and including the date of this order, for any connections to or from _____.]

LEGAL AND FACTUAL BACKGROUND

1. [AFFIANT], a peace officer employed by [AGENCY], is investigating a complaint of [CRIME] in violation of [CODE SECTION] that is alleged to have occurred on or about [DATE].

2. [AFFIANT] has written a sworn affidavit attached as “ATTACHMENT 1.” I request the attachment be incorporated by reference as if fully set forth herein and be reviewed by this court for sufficiency of articulable facts showing that there are reasonable grounds to believe that the records or other information sought by the affiant, are relevant and material to an ongoing criminal investigation

3. The affiant has informed me that records of customer and subscriber information relating to the affiant’s investigation are available from [BUSINESS] and the contents of electronic communications (not in electronic storage) that may be found at [BUSINESS] will help the affiant identify the individual(s) who are responsible for the crimes being investigated by the affiant.

4. Accordingly, the people request that [BUSINESS] be directed to produce all records described above in the section titled, "RECORDS SOUGHT."

LEGAL BASIS

18 U.S.C. § 2703 sets out particular requirements that the people must meet in order to obtain access to the records and other information it is seeking. To obtain records and other information pertaining to subscribers of an electronic communications service, the government must comply with the dictates of section 2703(c)(1)(B), which provides, in pertinent part:

A provider of electronic communication service or remote computing service shall disclose a record or other information pertaining to a subscriber to or customer of such service (not including the contents of communications covered by subsection (a) or (b) of this section) to a governmental entity only when the governmental entity

....

(ii) obtains a court order for such disclosure under subsection (d) of this section;

....

To obtain contents of electronic communications in a remote computing service (but not in electronic storage), the government must comply with 2703(b)(1)(B), which provides, in pertinent part:

A governmental entity may require a provider of remote computing service to disclose the contents of any electronic communication to which this paragraph is made applicable by paragraph 2 of this subsection --

....

(B) with prior notice from the government entity to the subscriber or customer if the governmental entity --

....

(ii) obtains a court order for such disclosure under subsection (d) of this section; except that delayed notice may be given pursuant to section 2705 of this title.

Paragraph 2 of subsection 2703(b) applies with respect to any electronic communication that is held or maintained on a remote computing service --

(A) on behalf of, and received by means of electronic transmission from (or created by means of computer processing of communications received by means of electronic

transmission from), a subscriber or customer of such remote computing service; and

(B) solely for the purpose of providing storage or computer processing services to such subscriber or customer, if the provider is not authorized to access the contents of any such communications for purposes of providing any services other than storage or computer processing.

5. Section 2703(d), in turn, provides (in pertinent part):

(d) Requirements for court order. --A court order for disclosure under subsection ... (c) may be issued by any court that is a court of competent jurisdiction and shall issue only if the governmental entity offers specific and articulable facts showing that there are reasonable grounds to believe that the ... records or other information sought, are relevant and material to an ongoing criminal investigation A court issuing an order pursuant to this section, on a motion made promptly by the service provider, may quash or modify such order, if the information or records requested are unusually voluminous in nature or compliance with such order otherwise would cause an undue burden on such provider.

Accordingly, the affiant has set forth facts which the affiant believes shows that there are reasonable grounds to believe that the materials sought are relevant and material to the ongoing criminal investigation described in the attached affidavit.

REQUEST FOR SEALING

As requested by the affiant, the people further request that this Application and Order be sealed by the Court until such time as the court directs otherwise, and [BUSINESS] be ordered to delay any notification required under section 2703(b) of this title for ninety days. Providing prior notice to the subject(s) if this investigation or allowing disclosure to the public at large could seriously jeopardize the ongoing investigation, as such a disclosure would give the subscriber an opportunity to destroy evidence, change patterns of behavior, notify confederates, or flee or continue his flight from prosecution.

WHEREFORE, it is respectfully requested that the Court grant the attached Order, directing [BUSINESS] to provide the affiant with the records and information described in the attached order and (2) directing that the Application and Order be sealed; and that the notification by the government otherwise required under 18 U.S.C. 2703(b) be delayed for ninety days; and (3) directing [BUSINESS] not to disclose the existence or content of the Order, except to the extent necessary to carry out the Orders.

Executed on November 30, 2002.

Deputy District Attorney

ATTACHMENT 1: AFFIDAVIT OF [AFFIANT] IN SUPPORT OF 2703(d) ORDER

I, your affiant, [AFFIANT], am a peace officer employed by the [AGENCY] and have been so employed for about [#] years. I am currently assigned to the Special Investigations Unit for the past three months. I was previously assigned to the Robbery Division and had been so assigned for more than eight years. During my career, I have investigated at least eight hundred cases involving crimes of robbery, kidnapping, and extortion allegations.

During the course of my duties, I have learned the following information based upon my discussions with the named witnesses or by having read the reports of or talked with other [AGENCY] officers who have spoken directly with the named witness. All references to dates refer to the current calendar year unless otherwise stated.

I was assigned to investigate a report of an extortion occurring over a period of time involving the victim, John VICTIM and his business, ABC Deli, located at 12345 Main Street, San Diego, inside the XYZ Market. The reported extortionist was identified by name as SUBJECT.

VICTIM stated that between May of 2000 and July of 2002, SUBJECT extorted money from him and his business by threatening to harm him and his family, by threatening to shoot VICTIM, and by threatening that he could make him disappear.

VICTIM borrowed an estimated \$45,000 over a period of six months between January and August 1999 to expand his business. SUBJECT loaned him the money in exchange for an interest-only payment. Most of the loan agreement was conducted verbally, and all payments made to SUBJECT were made in cash. At some time near November 2000, SUBJECT began demanding more and more money to be paid. VICTIM estimated he was paying up to \$1875 a month to SUBJECT, and had stopped making payments for a few months because he could not afford it.

In November, 2000, SUBJECT sent his sister, WITNESS, to the business and instructed her to handle all the cash. VICTIM stated SUBJECT forced him to hire his sister because he wanted to have control over the cash. Between November 2000 and May 2002, WITNESS handled all the cashiering at the business and routinely took money out of the register and delivered it to SUBJECT. During this time, VICTIM said SUBJECT wanted to take over partnership in the business, partly in exchange for the debt.

Also during this time, VICTIM stated that SUBJECT was constantly demanding more money be paid to him. WITNESS documented several of the cash payments in a receipt book VICTIM kept for the business. In addition, VICTIM stated that WITNESS would take out cash and hand it to her brother when he came into the business demanding more money. Sometimes, she would take the money home to her apartment to hand to SUBJECT. Each time, SUBJECT told VICTIM he owed him interest on the loan.

VICTIM stated that if he didn't pay SUBJECT what he demanded, that SUBJECT would threaten him, usually over the phone. SUBJECT told VICTIM that he knew where he lived, he knew where his family lived, and that he could have them followed. VICTIM stated that SUBJECT told him he kept a gun in his car, and threatened to shoot him at least three occasions. VICTIM said SUBJECT said he could make him disappear. Eventually, VICTIM could no

longer afford to keep the business open at 12345 Main Street, and he lost it to the owners of XYZ Market in May 2002. After losing the business, SUBJECT continued to call and demand more money be paid. VICTIM continued to pay him what he could until July 2002. VICTIM then realized he had paid more than double the amount he owed SUBJECT, and SUBJECT continued to demand more payment, saying it was "interest" owed.

I spoke with VICTIM's cousin, James COUSIN. On July 4, 2002, SUBJECT went to VICTIM's Acme Restaurant on 54321 Acme Boulevard and spoke with COUSIN. He became angry with COUSIN, poking his finger into his chest and demanded, he better not get in the way. SUBJECT demanded COUSIN to write down some figures to give to VICTIM. The document indicates SUBJECT was demanding that \$68,000 be paid to him, and that COUSIN tell VICTIM "I'm coming after John." He told COUSIN if he didn't want to get hurt himself payments to be made of \$2000 to \$4000 a month. Around that same time, COUSIN stated they began getting phone calls at the Acme Boulevard business from a person who would not identify himself or speak when the phone was answered at the business. COUSIN stated he got about five or six calls a day like that.

In July 2002, VICTIM believed he had paid back more than double the amount he borrowed from SUBJECT, and that SUBJECT would never stop collecting money from him. VICTIM stopped making any more payments. SUBJECT continued to call and make threats, demanding he make more payments. Recently, VICTIM began getting phone calls both at his business on 54321 Acme Boulevard and at home, where someone would call but not say anything when he answered the phone. Due to the threats SUBJECT had made, VICTIM feared he was harassing and intimidating him. VICTIM stated he received several phone calls, mostly in the mornings, at his business.

I spoke with VICTIM's wife, JANE VICTIM. She told me she had been getting phone calls at home in the last week of August and first week of September, 2002. These calls also were received usually in the morning. Each time, a person called but would say nothing. She was unable to find out from whom the calls were coming because her caller ID told her it was made from a blocked number. She feared the safety of her family, and was afraid to send her children outside to play. During one call she became frustrated and yelled at the caller. As she hung up on the caller, she heard a male voice respond, "Mira, tu -!" ("Look, you -!") and thought it sounded like SUBJECT.

VICTIM told me SUBJECT drives a red Thunderbird, and was living at 123 Elm Street in Anytown. SUBJECT recently told VICTIM he had moved and that VICTIM would never know where he was.

I conducted a check of phone and property records. The tax assessor's records show that Richard ACCOUNT HOLDER owns the property located at 123 Elm Street in Anytown. Criss-Cross records list the telephone customer as Richard ACCOUNT HOLDER.

On September 11, I arrested SUBJECT after watching him leave the residence of 123 Elm St. driving a red Thunderbird registered to his ex-wife, Mary Smith. After admonishment and waiver, SUBJECT told me his home phone number is (123) 555-1234. He also told me that the residence and telephone number were in the name of his boss, Richard ACCOUNT HOLDER, but confirmed that SUBJECT lived there for the past three years. Also during our conversation, SUBJECT admitted calling the VICTIM residence and business "about five or six

times” without responding when a person answered the telephone number he had called. He denied making any threats, except for once telling COUSIN to tell John he was going to “kick his ass” if he wasn’t paid. SUBJECT also claimed he received no money from VICTIM, except for three payments of \$250 over the past three years, even though he continually loan more and more money to VICTIM.

I spoke with WITNESS, who stated her brother SUBJECT told her to go work for John VICTIM as cashier about a year and a half ago. Though she initially stated she only documented receipts indicating payments to SUBJECT at VICTIM’ instructions, she admitted that on several occasions she did take money to her brother from the business, in the amounts of between \$500 and \$800 at a time.

I request the records to include the time between July 5 and September 11, 2002, to corroborate the fact that many phone calls were made in an effort to intimidate and extort money from the victim .

I contacted a representative of [BUSINESS] and checked the telephone number (123) 555-1234. [BUSINESS] informed me that they were the carrier for the telephone number and confirmed the account holder to be named as Richard ACCOUNT HOLDER.

I know that that notification will be deferred and no disclosure made pending further court order if there is a certification for non-disclosure in the body of the order setting forth a statement that there is probable cause to believe that notification to the subscriber would impede the investigation of the offense pursuant to which the order was issued. Accordingly, I do so believe and state it is my opinion such notification would seriously impede the subject investigation for the following reasons; my training and experience indicate that persons who learn they are the subject of an investigation will destroy evidence and/or flee, which would not only impede but would more likely destroy the investigation herein. I therefore request that the court order [BUSINESS] to defer notification pending further order of the court.

THEREFORE, I am seeking a Court Order to obtain any and all [BUSINESS] telephone records in the name of Richard ACCOUNT HOLDER, 123 Elm St., Anytown, CA.

YOUR AFFIANT DECLARES UNDER PENALTY OF PERJURY, under the laws of the State of California that this Affidavit is true and correct. This affidavit has been reviewed by Deputy District Attorney XXXX.

Executed in San Diego;

DATED: _____
TIME: _____

[AFFIANT]

IN RE APPLICATION
FOR AN ORDER PURSUANT TO
18 U.S.C. § 2703(d)

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This matter having come before the court pursuant to an application under Title 18, United States Code, Section 2703(b) and (c), which application requests the issuance of an order under Title 18, United States Code, Section 2703(d) directing [BUSINESS], an electronic communications service provider and a remote computing service, located at [BUSINESS ADDRESS], to disclose certain records and other information, as set forth in the Application, the court finds that the applicant has offered specific and articulable facts showing that there are reasonable grounds to believe that the records or other information sought are relevant and material to an ongoing criminal investigation.

IT APPEARING that the information sought is relevant and material to an ongoing criminal investigation, and that prior notice of this Order to any person of this investigation or this application and order entered in connection therewith would seriously jeopardize the investigation;

IT IS ORDERED pursuant to Title 18, United States Code, Section 2703(d) that BUSINESS will, within three days of the date of this Order, turn over to agents of [AGENCY] the following records and other information:

RECORDS SOUGHT

The records requested to be ordered produced are:

[RECORDS SOUGHT – example follows]

A. All customer or subscriber account information for any accounts registered to [SUBJECT] or associated with [SUBJECT]. For each such account, the information shall include:

1. The subscriber's account or login name;
2. The subscriber's address;
3. The subscriber's telephone number or numbers;
4. The subscriber's e-mail address;
5. Any other information pertaining to the identity of the subscriber, including, but not limited to billing information (including type and number of credit cards, student identification number, or other identifying information).

B. User connection logs for:

(1) all accounts identified in Part A, above,

(2) the IP address _____,

for the time period beginning _____ through and including the date of this order, for any connections to or from _____.

ORDER SEALING APPLICATION AND PRECLUDING BUSINESS

FROM NOTIFYING ANYONE

IT IS FURTHER ORDERED that the application and this Order are sealed until otherwise ordered by the Court, and that, for good cause shown, [BUSINESS] shall not disclose the existence of the Application or this Order of the Court, or the existence of the investigation, to the listed subscriber or to any other person, unless and until authorized to do so by the Court.

IT IS FURTHER ORDERED that the notification by the people otherwise required under 18 U.S.C. 2703(b)(1)(B) be delayed for ninety days.

Judge of the Superior Court

Date